

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Presiding Judge Law and Motion Calendar

Judge: HONORABLE JEFFREY R. FINIGAN

Department 24

400 County Center, Redwood City

Courtroom 2B

Monday, July 6, 2026

NOTICE TO ALL COUNSEL

Until further order of the Court, no endorsed-filed
"courtesy copy" of pleadings is required to be provided to
the Law and Motion Department.

IF YOU **INTEND TO APPEAR** ON ANY CASE ON THIS CALENDAR YOU
MUST DO ONE OF THE FOLLOWING:

1. YOU MUST CALL (650) 261-5124 BEFORE 4:00 P.M. AND
FOLLOW THE INSTRUCTIONS ON THE MESSAGE.
2. EMAIL PJLawandmotion@sanmateocourt.org BEFORE 4:00
P.M. CONTEMPORANEOUSLY COPIED TO ALL PARTIES OR THEIR
COUNSEL OF RECORD. IF BY EMAIL, IT MUST INCLUDE THE
NAME OF THE CASE, THE CASE NUMBER, AND THE NAME OF THE
PARTY CONTESTING THE TENTATIVE RULING
3. You must give notice before 4:00 P.M. to all parties
of your intent to appear pursuant to California Rules
of Court 3.1308(a)(1).

Failure to do both items 1 or 2 and 3 will result in no
oral presentation.

All Counsel are reminded to comply with California Rule of
Court 3.1110. The Court will expect all exhibits to be
tabbed accordingly.

Case

Title / Nature of Case

9:00

LINE 1

26-CIV-04422 PEDRO NAJERA VS. SYRIA DOMINGUEZ

PEDRO NAJERA
SYRIA DOMINGUEZALEXSIS C. BEACH

PETITION FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION
OF PROCEEDS OF JUDGMENT FOR MINOR OR PERSON WITH A DISABILITY BY PEDRO
NAJERA

TENTATIVE RULING:

The Petition for Approval of Compromise of Claim for Minor ("Petition") is **DENIED without prejudice** to either: (1) appear on July 6, 2026, and address the issues noted herein; or (2) refile the Petition to address the issues herein.

The Court is denying the Petition for the following reasons:

1. The Petition is accompanied by an Application for Appointment of Guardian Ad Litem, however there is no Order Appointing Guardian Ad Litem (Judicial Council Form CIV-011/FL-936) filed with the Application.
 2. Paragraph 11 of the Petition is not completely filled out and there is no Attachment 11b(6).
 3. Paragraph 14 of the Petition is not completely filled out.
 4. Paragraph 16.b. of the Petition has an error: \$750.00 should be \$7,500.00.
 5. Paragraph 17.a.(2) appears to have an error, because the Petitioner and attorney "do" have an agreement, which is contained in Attachment 17a.
 6. Paragraph 17.c. is indecipherable and a detailed explanation needs to be included in an Attachment 17c.
 7. The Petition does not appear to satisfy Probate Code §§ 3401(c)(1) and 3611, which expressly limits direct payment to a parent to cases where the remaining balance **does not exceed** \$5,000. For amounts above that threshold, the Court must order one or more of the other protective arrangements enumerated in § 3611, such as a blocked account, a court-created trust, a special needs trust, a UTMA custodianship, or a guardianship of the estate. Here, Petitioner seeks a court order unconditionally disbursing \$20,997.33 to a parent of the minor without any indication or accompanying order that the funds will be held in trust for the minor. (Petition at
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¶18.a.(1).) These circumstances seem to require an Order to Deposit Funds in a Blocked Account (Judicial Council Form MC-355), which is not included with the Petition. The Proposed Order filed with the Petition references the appropriate blocked account and the MC-355, but since no such form has been filed, this discrepancy exists.

If the tentative ruling is uncontested and there is no appearance on July 6, 2026, to address the issues herein, the Court will order the Petition denied without prejudice to refile.

POSTED: 3:00 PM